

Radhe Shyam Singh v. State of U.P. & 2 Ors.

Allahabad High Court · Division Bench · 28 May 2014 · 2014 SCC OnLine All 8036 · Writ - C No. 30266 of 2014 · **Writ petition disposed of; mandamus to provide the tenant a new connection**

HEADNOTE

Section 43 of the Electricity Act, 2003 casts a duty on every licensee to supply electricity to the owner OR occupier of any premises in its area. A landlord's refusal to give consent — here to pressure a tenant to vacate — cannot be a ground to refuse a new connection to the tenant in occupation, the licensee being under a legal duty under Section 43. The Court issued a mandamus directing the licensee to install a new connection in the tenant's name (subject to his completing the formalities under the U.P. Electricity Supply Code, 2005), following the Supreme Court in *Chandu Khamaru v. Nayan Malik* and *Dr. Meena Chaudhary v. BSES Rajdhani Power Ltd.*

HOLDING-UNITS

INTERPLAY · EA2003::43

Duty to supply to owner or occupier; landlord's consent not a precondition for a tenant's connection

QUESTION

Can a licensee refuse a new connection to a tenant in occupation because the landlord objects/withholds consent?

HOLDING

No. Section 43 casts a duty to supply to the owner or occupier of premises; the landlord's refusal of consent (here to pressure the tenant to vacate) is no ground to refuse the tenant a new connection. A mandamus was issued to install the connection in the tenant's name, subject to his completing the Code formalities. ¶ (judgment)

LIMITING FACTS

Tenant in occupation; the landlord had disconnected the existing connection and objected to a fresh one to force the tenant out.

PRINCIPLE TAGS

landlord-consent-not-required-for-tenant-connection-s43 Under the s.43 duty to supply to an owner or occupier, a tenant/occupier cannot be refused a new connection merely because the landlord objects or withholds consent. Lead authorities: *Chandu Khamaru v. Nayan Malik*. ¶ (judgment)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Chandu Khamaru v. Nayan Malik</i> (2011) 12 SCC 314 Supreme Court	A tenant/occupier is entitled to an electricity connection and the owner's consent is not an indispensable precondition; the licensee's statutory duty to supply cannot be defeated for want of the owner's consent.	Followed as the governing Supreme Court authority. ¶ (judgment)	Court	Followed
<i>Dr. Meena Chaudhary @ Dr. Meena P.N. Singh v. BSES Rajdhani Power Ltd.</i> Writ Petition (Crl.) No. 103 of 2013 (SC, 25-06-2013) Supreme Court	Reaffirms that an occupier is entitled to a connection and the owner's consent is not an indispensable precondition.	Followed as reaffirming the same view. ¶ (judgment)	Court	Followed

